

NEW OR TRANSFER
LIQUOR LICENSE OR
PERMIT APPLICATION

FOR LIQUOR DIVISION USE ONLY			
Customer #:			
Trf from:			
Reviewer:		Initials	Date
Agent:			/ /
Mgr:			/ /

To be completed by City/County Clerk

License Fees

Annual Fee: \$ 10,500.00

Prorated Fee: \$

Transfer Fee: \$

Publishing Fee: \$ 100.00

Local License #: 247559

Date filed with clerk: 10 / 9 / 23

Advertising Dates: (2 Weeks) Nov. 2 & Nov. 9 2023

Hearing Date: 11 / 13 / 2023

Publishing Fee Direct Billed to Applicant: ☐

License Term: upon issuance / Through 3 / 31 / 24

Month Day Year Month Day Year

LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.

Applicant: Wyoming Horse Racing LLC

Trade/Business Name (dba): Horse Palace

Building to be licensed/Building Address: 1802 Dell Range Blvd. Suite 3

City State Zip County

Cheyenne, WY 82009

Local Mailing Address: PO Box 1247

City State Zip

Cheyenne, WY 82003

Local Business Telephone Number: (307) 288-5858 Fax Number: ()

Business E-Mail Address: jeffblack@wyominghorseracing.com

FILING FOR	FILING IN (CHOOSE ONLY ONE)	FILING AS (CHOOSE ONLY ONE)
☒ NEW LICENSE	☒ CITY OF: Cheyenne	☐ INDIVIDUAL
☐ TRANSFER OF LOCATION	☐ COUNTY OF:	☐ PARTNERSHIP
☐ TRANSFER OWNERSHIP	☐ ASSIGNMENT LETTER ATTACHED	☐ LP/LLP
FORMERLY HELD BY:		☒ LLC
		☐ CORPORATION
		☐ LTD PARTNERSHIP
		☐ ORGANIZATION
		☐ OTHER

TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE)

RETAIL LIQUOR LICENSE	☐ RESTAURANT LIQUOR LICENSE	☐ MICROBREWERY PERMIT
☐ ON-PREMISE ONLY (BAR)	☒ BAR AND GRILL LIQUOR LICENSE	☐ WINERY PERMIT
☐ OFF-PREMISE ONLY (PACKAGE STORE)	☐ RESORT LIQUOR LICENSE	☐ DISTILLERY SATELLITE PERMIT
☐ COMBINATION ON/OFF PREMISE (BOTH BAR & PACKAGE STORE)	LIMITED RETAIL LIQUOR LICENSE (CLUB)	☐ WINERY SATELLITE PERMIT
	☐ VETERANS CLUB	☐ COUNTY MALT BEVERAGE PERMIT
	☐ FRATERNAL CLUB	☐ SPECIAL MALT BEVERAGE PERMIT
	☐ GOLF CLUB	
	☐ SOCIAL CLUB	

SPECIAL DESIGNATIONS (CHOOSE ONLY ONE)

☐ GOLF CLUB ☐ GUEST RANCH ☐ RESORT

To Assist the Liquor Division with scheduling inspections: **OPERATIONAL STATUS**

☒ FULL TIME (e.g. Jan through Dec) (specify months of operation) from 10 am to Sun-Thurs

☐ SEASONAL/PART-TIME DAYS OF WEEK (e.g. Mon through Sat) m-s from 10 am to Fri-Sat

☐ NON-OPERATIONAL/PARKED HOURS OF OPERATION (e.g. 10a - 2a) from 2 am to

ALL APPLICANTS MUST COMPLETE QUESTIONS 1- 4**1. BUILDING OWNERSHIP:** Does the applicant? W.S. 12-4-103(a)(iii)

- (a) **OWN** the licensed building? ☐ YES (own)
- (b) **LEASE** the licensed building? (Lease must be through the term of the liquor license) ☒ YES (lease)

If Yes, please submit a copy of the lease and indicate:

- (i) When the lease expires, located on page 2nd Amendment paragraph 4 of lease.
- (ii) Where the **Sales** provision for alcoholic or malt beverages is located, on page 3rd Amend paragraph 2 of lease.
(MUST contain a provision for SALE OF ALCOHOLIC or MALT BEVERAGES.)

2. To operate your liquor business, have you assigned, leased, transferred or contracted with any other person (entity) to operate and assert total or partial control of the license and the licensed building? W.S. 12-4-601(b)

☐ YES ☒ NO

3. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403

- (a) Hold any interest in the license applied for? ☐ YES ☒ NO
- (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business? ☐ YES ☒ NO
- (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
- (d) If you answered **YES** to any of the above, explain fully and submit any documents in connection there within:

4. Does the applicant have any interest or intent to acquire an interest in any other liquor license issued by this licensing authority? W.S. 12-4-103(b)

☒ YES ☐ NO

If "YES", explain: Applicant holds liquor licenses for 1601 Central Ave. and 6421 Speer Rd. (Swan Ranch)

5. BAR AND GRILL LICENSE OR RESTAURANT LICENSE:

Have you submitted a valid food service permit or application? W.S. 12-4-413(a)

☒ YES ☐ NO

6. RESORT LICENSE:

Does the resort complex:

- (a) Have an actual valuation of at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO
- (b) Include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO
- (c) Include motel, hotel or privately owned condominium, town house or home accommodations approved for short term occupancy with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO
- (d) If no on question (c), have a ski resort facility open to the general public in which you have committed or expended not less than 10 million dollars (\$10,000,000.00)? W.S. 12-4-401(b)(iv) ☐ YES ☐ NO
- (e) Are you contracting/leasing the food and beverage services? W.S. 12-4-403(b)
1. If Yes, have you submitted a copy of the food and beverage contract/lease? ☐ YES ☐ NO

7. MICROBREWERY LICENSE:

- (a) Do you self distribute your products? W.S. 12-2-201(a)
(Requires wholesale malt beverage license with the Liquor Division)

☐ YES ☐ NO

8. LIMITED RETAIL (CLUB) LICENSE:

FRATERNAL CLUBS W.S. 12-1-101(a)(iii)(B)

- (a) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
- (b) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

9. LIMITED RETAIL (CLUB) LICENSE:

VETERANS CLUBS W.S. 12-1-101(a)(iii)(A):

- (a) Does the Veteran's organization hold a charter by the Congress of the United States?

☐ YES☐ NO
- (b) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary?

☐ YES☐ NO

10. LIMITED RETAIL (CLUB) LICENSE:

GOLF CLUBS W.S. 12-1-101(a)(iii)(D)/W.S. 12-4-301(e):

- (a) Do you have more than fifty (50) bona fide members?

☐ YES☐ NO
- (b) Do you own, maintain, or operate a bona fide golf course together with clubhouse?

☐ YES☐ NO
- (c) Are you a political subdivision of the state that owns, maintains, or operates a golf course?

☐ YES☐ NO

1. Are you contracting/leasing the food and beverage services? W.S. 12-5-201(g)

☐ YES☐ NO

2. If Yes, have you submitted a copy of the food and beverage contract/lease?

☐ YES☐ NO

11. LIMITED RETAIL (CLUB) LICENSE:

SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E)/W.S. 12-4-301(b):

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located?

☐ YES☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state?

☐ YES☐ NO
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service?

☐ YES☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year?

☐ YES☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as Recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues?

☐ YES☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club?

☐ YES☐ NO
- (g) Have you filed a true copy of your bylaws with this application?

☐ YES☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License? (Petition Attached)

☐ YES☐ NO

12. If applicant is filing as an Individual, Partnership or Club: W.S. 12-4-102(a)(ii) & (iii)

Each individual, partner or club officer must complete the box below.

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip <i>DO NOT LIST PO BOXES</i>	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

(2/22)
13. If the applicant is a Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership: W.S. 12-4-102(a)(iv) & (v)

Each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, and every officer, and every director must complete the box below.

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip DO NOT LIST PO BOXES	Residence Phone Number	No. of Years in Corp or LLC	% of Corpora te Stock Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
WY Funding LLC		71 S.E. Wyoming Blvd. Casper, WY 82609		1	100%	YES ☐ NO ☒	YES ☐ NO ☒
Nicholas Hughes President	7/18/56	392 Lum Crowe Rd Roswell, GA 30075	270-776-5744	1	0%	YES ☐ NO ☒	YES ☐ NO ☒
John H. Sheldon, III Executive Vice President	9/5/54	11383 Merado Peak Dr. Las Vegas, NV 89135	513-544-6207	1	0%	YES ☐ NO ☒	YES ☐ NO ☒
Peter Liguori Executive Vice President	12/6/57	225 North Evergreen Ave. Elmhurst, IL 60126	312-618-6922	1	0%	YES ☐ NO ☒	YES ☐ NO ☒
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application)

REQUIRED ATTACHMENTS:

- ☒ A statement indicating the financial condition and financial stability of the applicant. W.S. 12-4-102(a)(vi).
- ☒ Attach any lease agreements (especially for resort/political subdivisions leasing out food & beverage services) W.S. 12-4-103 (a)(iii)/W.S. 12-4-403(b) / W.S. 12-4-301(e).
- ☒ If transferring a license from one ownership to another, a form of assignment from the current licensee to the new applicant authorizing the transfer. W.S. 12-4-601(b).

OATH OR VERIFICATION

(Requires signatures by ALL Individuals, ALL Partners, ONE (1) LLC Member, or TWO (2) Corporate Officers or Directors except that if all the stock of the corporation is owned by ONE (1) individual then that individual may sign and verify the application upon his oath, or TWO (2) Club Officers.) W.S. 12-4-102(b)

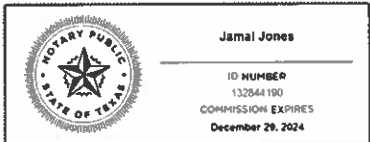
Under penalty of perjury, and the possible revocation or cancellation of the license, I swear the above stated facts, are true and accurate.

STATE OF Texas)
COUNTY OF Harris) SS.

Signed and sworn to before me on this 6th day of October, 2023 that the facts alleged in the foregoing instrument are true by the following:

- | | | | |
|----|---|----------------|--------------------------|
| 1) |  | Peter Liguori | Executive Vice President |
| | (Signature) | (Printed Name) | Title |
| 2) | | | |
| | (Signature) | (Printed Name) | Title |
| 3) | | | |
| | (Signature) | (Printed Name) | Title |
| 4) | | | |
| | (Signature) | (Printed Name) | Title |
| 5) | | | |
| | (Signature) | (Printed Name) | Title |
| 6) | | | |
| | (Signature) | (Printed Name) | Title |

Witness my hand and official seal:




Jamal Jones
Signature of Notary Public

(SEAL)

My commission expires: 12/29/2024

Notarized online using audio-video communication

October 6, 2023

Mayor Patrick Collins and Members of the Cheyenne City Council
2101 O'Neil Ave., Room 101
Cheyenne, WY 82001

RE: Application for bar and grill (entertainment) liquor license for Wyoming Horse Racing LLC (Horse Palace, 1802 Dell Range, Suite 3, Cheyenne, WY 82009)

Dear Mayor Collins and Members of the Cheyenne City Council:

Our firm represents Wyoming Horse Racing LLC ("WHR") and respectfully submits the enclosed application for a bar and grill (entertainment) liquor license for WHR's current location of 1802 Dell Range, Suite 3, Cheyenne, WY 82009.

WHR provides pari-mutuel wagering through historic horse racing terminals, as well as live and simulcast horse racing events at locations in the city of Cheyenne and throughout the state of Wyoming. WHR is a thriving company in good standing with the Wyoming Secretary of State, all creditors, the Wyoming Gaming Commission, and all cities, towns and counties in which it currently operates. WHR employs many Wyoming residents (both in this community and beyond) and continues to help communities thrive by creating jobs and economic stability for small business owners in each municipality within which it operates.

For its application, WHR encloses the following documentation:

1. New or Transfer Liquor License or Permit Application
2. Limited Liability Company Annual Report (per requirement of financial statement)
3. Lease agreement with amendments and extensions
4. Floor plan
5. Evidence of WHR's pending application with the Cheyenne Laramie County Public Health for a Wyoming Department of Agriculture Food License (NOTE: WHR will in the near future separately apply for a license to operate as a restaurant (food service establishment) pursuant to Cheyenne Ordinance #3157, City Code, 5.08.090 and Chapter 8.40)
6. Proposed menu
7. Affidavit/Authorization of Peter Liguori, WHR Executive Vice President
8. Certificate of Good Standing from the Wyoming Secretary of State's Office
9. Letter verifying all employees attend an alcohol training program (TIPS)
10. Check for the required fees in the amount of \$10,600.00 (\$10,500.00 application fee and \$100.00 publication fee)

WHR appreciates your consideration of this application for a bar and grill (entertainment) liquor license. If you need anything further or have any questions, do not hesitate to contact me directly.

Yours truly,

CROWLEY FLECK PLLP



Timothy L. Woznick
/tjw
enclosures

AMENDMENT TO LEASE
FOR
ENTERTAINMENT LIQUOR LICENSE

August 24, 2023

Mr. Peter M. Liguori
Executive V.P.
Wyoming Horse Racing LLC.
P.O. Box 1247
Cheyenne, WY 82003

RE: Amendment to Lease for Entertainment Liquor License.

Dear Mr. Liguori,

We are writing with regard to the Lease dated October 1, 2014 between FWP Cheyenne LLC. (Lessor) and Wyoming Horse Racing LLC. (Lessee) for the premises at 1802 Dell Range Blvd., in Cheyenne, Wyoming 82009.

[The Lease agreement is hereby amended to specifically provide that the sale by tenant/lessee of alcoholic and malt beverages upon the leased premises is permissible.

All other general terms/conditions of the Lease Agreement dated 10/1/2014 shall continue to apply in full force and effect.

Sincerely,



Fred W. Plotke, Manager
FWP Cheyenne, LLC.

Principal/President
TIME REALTY INVESTMENTS, INC.
1511 – 18th Street
Santa Monica, CA 90404
w: 310-828-4481



TIME REALTY
INVESTMENTS, INC.

1511 EIGHTEENTH STREET • SANTA MONICA, CA 90404 • TEL (310) 828-4481 • FAX (310) 453-2216

July 13, 2021

Eugene T. Joyce
President/Manager
Wyoming Horse Racing LLC
P.O. Box 3210
Evanston, WY 82931

1802 Dell Range Blvd. – Suite #3
Cheyenne, WY 82009

RE: Proposal/Amendment to Extend the existing Lease dated 10/1/14 for an additional 2-year term with Option to Extend for an additional 24 months.

Dear Eugene:

This note follows up our conversation concerning your desire to extend Wyoming Horse Racing's lease for an additional 2 years, with a 2-year Option.

The original Lease dated 10/1/14 was for an 18-month period through 4/30/16 with an Option to Extend for an additional 3 years. The Option called for annual 3% rent adjustments for each of the 3 years, but these increases were never implemented.

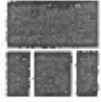
As the monthly Base Rent has not been adjusted for over 5 years, we came up with the following analysis in determining our basis for this proposal. Had we increased the \$4700 Base Rent 3% in each of the past 5 years (including the 3-year Option period), the monthly Base Rent would now be about \$5450/month.

Our proposal is to request an adjustment in the monthly Base Rent to \$5100/month, which would remain fixed for the initial 2-year lease term 8/1/21 – 7/31/23. The \$360 CAM charge would remain the same, resulting in a combined monthly payment of \$5460/month (\$5100 Base Rent + \$360 CAM). There would be a \$200 adjustment to the Base Rent (to \$5300/month) upon commencement of the Option period. The total rent for the 2-year Option period would then be \$5660/month (\$5300 Base Rent + \$360 CAM), which would also remain fixed for the entire Option period 8/1/23 – 7/31/25.

Please note that the Basic Rental Rate is inclusive of Real Estate Taxes and Property Insurance, but **not** basic Common Area Maintenance expenses (for gardening/snow removal/sweeping and parking lot maintenance), water/sewer services, exterior lighting and rubbish removal. These CAM charges may be adjusted at a later date.

JNP

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All other general terms/conditions of the Lease Agreement dated 10/1/14 shall continue to apply in full force and effect for the duration of the extended lease term (8/1/21 - 7/31/23) as well as any additional extended periods.

Please feel free to contact us if you have any questions or would like to discuss this further. We can be reached at our office 310-828-4481 or my cell 310-993-0414. You can also contact David Lewis at 310-722-0124.

Sincerely,

Fred W. Plotke, Managing Member/Lessor
FWP Cheyenne LLC, DBA: Center One
1802 Dell Range Blvd. Retail Property

Principal/President
TIME REALTY INVESTMENTS, INC.

Acknowledged/Agreed by:

Eugene T. Joyce
President/Manager
Wyoming Horse Racing LLC.

7/15/21
/Date

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September 30, 2014

Mr. Tim Lattner
DBA: Wyoming Horse Racing LLC.
136 Michaux Rd.
Riverside, IL 60546

RE: Amendment to Proposal to Lease dated 9/2/14 for the subject premises of approximately 3583 sq.ft. at 1802 Dell Range Blvd., Suite #3, in Cheyenne, WY 82009;
Proposed Tenant Improvement Allowance.

Dear Mr. Lattner:

This note/amendment to our Proposal to Lease dated 9/2/14, follows up previous phone conversations pertaining to your request for a larger Tenant Improvement Allowance, inclusive of improvements that were previously to be "provided for" by Lessor.

Altogether, we will hereby provide you with a \$15,000 Tenant Improvement and Advertising/Signage Allowance which shall include the following work/repairs to be performed by your contractor:

- 1) modification of raising and extending the existing (and former Laundromat) drain openings to surface level, capping, and then sealing surrounding areas within floor drain troughs;
- 2) correcting and modifying the existing bathroom(s) to handicap standards, including any required replacement of the existing hot water tanks (if needed); and
- 3) Heating and Air Conditioning to be serviced and in good operating condition

The above items modify Lessor's and Lessee's obligations as well as the Delivery Condition of Premises and Tenant Improvement Allowance outlined in the original 9/2/14 Lease Proposal. All work must be performed by a licensed contractor and meet City of Cheyenne building codes and guidelines. With the increased TI Allowance specified above, Lessor shall have no further financial responsibility for any other repairs or improvements to be done within the subject premises except for roof repairs or other plumbing/electrical repairs as set forth in the basic Lease Agreement Lessor's obligations. TI Allowance shall be paid directly to vendors, or be reimbursed to Lessee upon receipt of paid invoice. Credit to be used by 12/31/14.

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Mr. Tim Lattner
DBA: Wyoming Horse Racing LLC.
Amendment to Proposal to Lease
Page 2

All other terms and conditions outlined in the 9/2/14 letter/proposal shall continue to apply as the basis for a Lease Agreement to be prepared by Lessor.

If you have any questions, please feel free to contact either David Lewis or myself at 310/828-4481. You can also reach me directly on my cell at 310/993-0414.

This Amendment to Proposal to Lease dated 9/2/14 shall be null and void if not accepted in writing (FAX or email okay) by 5:00PM PDT on Wednesday, 10/1/14. This Amendment to Proposal is also only valid if signed and acknowledged in conjunction with Lessor's receipt of Lessee's signed 9/2/14 Proposal to Lease.

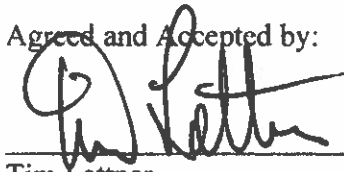
Sincerely,



Fred W. Plotke, Member
FWP CHEYENNE LLC
1802 Dell Range Blvd. Retail Center

Principal/President
TIME REALTY INVESTMENTS, INC.

Agreed and Accepted by:



Tim Lattner

Member

Wyoming Horse Racing, LLC.

Date

10-2-2014

Blind
15 DORM COUNTRY WING, N.E. 1.
HEALTHY Construction - 307-638-8243
631-2784.

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September 2, 2014

480-
45-

Mr. Tim Lattner
DBA: Wyoming Horse Racing LLC.
136 Michaux Rd.
Riverside, IL 60546

RE: Proposal to Lease subject premises of approximately 3583 sq.ft. at
1802 Dell Range Blvd., Suite #3, in Cheyenne, WY 82009

Dear Mr. Lattner:

Thank you for your interest in leasing the storefront premises at 1802 Dell Range Blvd., Suite #2, in Cheyenne, WY 82009. As was previously discussed, we hereby propose to lease the above subject premises under the terms and conditions outlined below:

The below base rent shall be inclusive of Real Estate Taxes and Insurance premiums.
A separate utility reimbursement impound shall apply for water/sewer, rubbish charges and exterior lighting. (See Utility Impound on Page 3)

We hereby propose to lease the above subject premises under the terms and conditions outlined below:

Base Monthly Rent:	\$4,500/month Modified Gross (Prox. \$15/S.F.), Fixed for 18 Months.
Security Deposit:	\$12,000 if Lease is in the name of the LLC., or \$8,000 with personal guarantee
Lease Term:	18 Months plus one (1) three year option period
Lease Commencement Date:	October 1, 2014 (No charge for early possession), However, delivery of premises may be delayed depending upon removal of tanks/boiler and covering of floor drains/troughs.

SUBJECT Local Zoning Laws

Commercial/Industrial Real Estate Investments • Apartments • Management • Consulting

J.W.P.



**TIME REALTY
INVESTMENTS, INC.**

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Mr. Tim Lattner
DBA: Wyoming Horse Racing LLC.
Proposal to Lease
Page 2

Delivery condition of property: Subject premises shall be delivered in its current condition with all HVAC and plumbing in good operating condition. Lessee shall obtain an HVAC maintenance contract which specifies that all equipment will be inspected and serviced at least every 3 months with air filters changed, etc.

Lessor's Obligations: Lessor shall remove all plumbing/vent pipes, machines, signs and other miscellaneous items associated with the previous Laundromat tenancy at Lessor's expense. Lessor shall remove all tanks/boilers from Utility Room and cover existing drain pipes so that flooring is "carpet ready." Lessor shall also repair bathrooms to working order and clean up ceiling tiles.

Lessee's Obligations: Tenant shall be responsible for painting all interior walls in a mutually agreed upon neutral color. Tenant will build one office and provide all counters, partitions and area dividers necessary for operations. Any planned alterations and improvements by Lessee shall be delineated, diagramed and submitted to Lessor for approval and meet City of Cheyenne building codes and guidelines. Tenant will provide window signs to be approved by Lessor.

Option to Extend: One 3-Year Option to Extend Term of Tenancy. The Option period shall be for the period 4/1/16 – 3/31/19. The Base Monthly Rent for the initial 12-month period shall be determined by a formula based on the increase in the Cost of Living (Inflation) as measured by the CONSUMER PRICE INDEX (CPI) FOR URBAN WAGE EARNERS AND CLERICAL WORKERS – U.S. CITY AVERAGE as follows:

$$\frac{\text{CPI on 4/1/16}}{\text{CPI on 10/1/14}} \times \$4500 = \text{Base Monthly Rent for initial 12-month period} \\ 3/1/16 - 2/28/17 \text{ (Minimum \$4700)}$$

Thereafter, monthly rents shall increase 3% annually thru the remainder of the Option period.

Tenant Improvement Allowance: Lessor shall give a one-time special Tenant Improvement (TI) and signage/advertising allowance of \$5000 which is to be paid directly to vendors, or to be reimbursed to Lessee upon receipt of paid invoice. Credit must be used within the initial 3-months of Lessee's occupancy by 12/31/14.

J.W.P.



**TIME REALTY
INVESTMENTS, INC.**

1511 EIGHTEENTH STREET • SANTA MONICA, CA 90404 • TEL (310) 828-4481 • FAX (310) 453-2216

Mr. Tim Lattner
DBA: Wyoming Horse Racing LLC.
Proposal to Lease
Page 3

Common Area (Maintenance, Taxes and Insurance): Base Rental Rate is inclusive of R.E. Taxes and Insurance, but not basic Common Area Maintenance (for gardening/snow removal/sweeping and parking lot maintenance), water/sewer services, exterior lighting and rubbish removal. Lessee occupies approximately 16% of the entire Center One Retail Center and shall be responsible for 16% of all common area charges.

Utility Impound. Water/sewer and sanitation services are billed directly to Lessor's utility account through Cheyenne's Board of Public Utilities. Each Tenant is allocated one trash container and shall be responsible for all rubbish removal charges and excess usages (i.e. rubbish or other special usages). Assuming Tenant utilizes only one rubbish container for the operation of its business (with a 1x/week pick-up), the container service fee shall amount to an initial charge of \$75/month and be in addition to the monthly rent. **It is currently estimated that Wyoming Horse Racing's portion of the combined initial Common Area and Utility/Rubbish Impound amounts to about \$200/month. This \$200/month impound shall be in addition to the base monthly rent, and may be subject to change with 60 days advance written notice.**

Maintenance and Repairs: Foundations, exterior walls, and exterior roof shall be maintained by Lessor. Lessee shall repair and maintain all other parts of the Premises and adjacent areas.

Insurance and Real Estate Tax Pass-through Charges: Lessee occupies approximately 16% of the entire 1802 Dell Range Blvd. property and shall be responsible for 16% of incremental increases in insurance and/or R.E. Taxes over the 2014 Base Year.

Lease Form: AIREA Gross Commercial Lease, Professional Publishing Lease, or equivalent

The terms and conditions outlined in this letter/proposal to lease shall serve as the basis for a subsequent AIREA Lease Agreement (or equivalent) to be prepared by Lessor. Until such lease is fully executed between Lessor and Lessee, Lessor agrees to give Lessee immediate possession of subject premises upon receipt of Security Deposit, first month rent, and water/rubbish utility impound.

J.W.P.

TIME REALTY
INVESTMENTS, INC.

1511 EIGHTEENTH STREET • SANTA MONICA, CA 90404 • TEL (310) 828-4481 • FAX (310) 453-2216

Mr. Tim Lattner
DBA: Wyoming Horse Racing LLC.
Proposal to Lease
Page 4

If you have any questions, please feel free to contact either David Lewis or myself at 310/828-4481. You can also reach me directly on my cell at 310/993-0414.

This Proposal to Lease dated 9/2/14 shall be null and void if not accepted in writing (FAX or email okay) by 5:00PM PDT on Friday, 9/5/14.

- SUBJECT TO LOCAL ZONING LAW & APPROVALS TL

Sincerely,



Fred W. Plotke, Member
FWP CHEYENNE LLC
1802 Dell Range Blvd. Retail Center

Principal/President
TIME REALTY INVESTMENTS, INC.

Agreed and Accepted by:



Tim Lattner
Member
Wyoming Horse Racing, LLC.

9-5-2014

Date

Wyoming Horse Racing
Wyoming Horse Palace
Cheyenne, WY



STATE OF WYOMING
Office of the Secretary of State

I, CHUCK GRAY, Secretary of State of the State of Wyoming, do hereby certify that according to the records of this office,

Wyoming Horse Racing LLC
is a
Limited Liability Company

formed or qualified under the laws of Wyoming did on **March 31, 2011**, comply with all applicable requirements of this office. Its period of duration is Perpetual. This entity has been assigned entity identification number **2011-000599488**.

This entity is in existence and in good standing in this office and has filed all annual reports and paid all annual license taxes to date, or is not yet required to file such annual reports; and has not filed Articles of Dissolution.

I have affixed hereto the Great Seal of the State of Wyoming and duly generated, executed, authenticated, issued, delivered and communicated this official certificate at Cheyenne, Wyoming on this 5th day of October, 2023 at 9:46 PM. This certificate is assigned ID Number 065837023.



A handwritten signature in cursive script, reading "Chuck Gray", is written over a horizontal line.

Secretary of State

Notice: A certificate issued electronically from the Wyoming Secretary of State's web site is immediately valid and effective. The validity of a certificate may be established by viewing the Certificate Confirmation screen of the Secretary of State's website <https://wyobiz.wyo.gov> and following the instructions displayed under Validate Certificate.



August 19, 2023

City Clerk Department
Division of City Clerk
2101 O'Neil Avenue, Room 101
Cheyenne, Wyoming 82001

Dear City Clerk,

Any employee who works at any of our locations and serves liquor, must go through TIPS training so they can become TIPS certified to serve liquor. This would also occur at our Dell Range location.

Sincerely,

A handwritten signature in black ink, appearing to read "SJ", with a large, stylized flourish extending from the bottom right.

Steven Jimenez

General Manager
Wyoming Horse Racing

PO Box 1247

Cheyenne, WY 82003

307-996-8499

Dell Range

Food Menu

- Hot Dogs
- Sausage
- Bratwurst
- Taquitos
- Nachos and cheese
- Popcorn
- Bagged Chips
- Soft Pretzels
- Candy bars
- Soda
- Water



REVIEW OF PLANS AND SPECIFICATIONS

ID: 1147

Swimming Pool/Spa ☐ Daycare ☐ Other ☐ Mobile Home Park ☐ Campground ☐ Food Est ☒

1. Establishment:

Dell Range Horse Palace (307) 635-2407
1802 Dell Range
Cheyenne WY 82009 CONTACT Shawn Jackson

2. Owner:

Wyoming Horse Racing LLC (307) 996-8488
311 W. 18th St
Cheyenne WY 82001 CONTACT Shawn Jackson

3. Architect/Engineer:

CONTACT

CHEYENNE/LARAMIE COUNTY FOOD RULE

TITLE of STANDARDS

4. Environmental Health Reference N 23-R26

5. Reviewed by JAMES JONES

6. Date of Review 10/3/2023

7. Action: APPROVED WITH COMMENTS

8. Plan's must be completed b

9. Comments and Notes See attached sheet

(Submit response to all comments to this office within fourteen (14) days of review date)

- CC:
- ☒ CITY CLERKS OFFICE
 - ☐ CITY DEVELOPMENT OFFICE
 - ☒ CITY FIRE DEPARTMENT
 - ☒ CITY BUILDING DEPARTMENT
 - ☒ BOARD OF PUBLIC UTILITIES
 - ☐ COUNTY PLANNING
 - ☐ SOUTH CHEYENNE WSD

Comments to Plan Review #23-R26

Additional requirements and conditions:

1. At least one employee assigned to this location must have their Food Protection Manager certification prior to restarting the cooking operations.
 2. Coolers/fridges must be NSF.
 3. Ice machine and 3-compartment sink need to be indirectly drained.
 4. Verify with Cheyenne Board of Public Utilities if the facility will require a grease trap.
 5. FRP, stainless steel, or tile is required on walls behind all wet areas such as behind/around sinks.
 6. Any holes or gaps in the facility must be repaired and or filled to be smooth and easily cleanable.
 7. Ceiling above bar, bar seating area and anywhere food is prepped/cooked must be smooth and easily cleanable.
 8. Mop sink must have backflow preventor.
 9. If a splitter is installed on mop sink, provide hose bib vacuum breaker on each side.
 10. Provide hand washing signage at all hand sinks. Stickers can be obtained from this office if needed.
 11. Hair control (scarf, hair net, hat, or visor) must be worn by all employees handling, prepping, or serving food or drinks.
-

12. Spray hoses must hang above flood rim of sink.
13. All equipment, shelving, and storage must be six inches up off the floor. Chemicals must be stored separate from food and labeled with correct identity of product.
14. No bare hand contact is allowed with ready to eat food.
15. Foods in cold units must be stored according to cooking temperatures. Foods which require higher cooking temperatures must be stored below foods which require lower cooking temperatures. For example, raw meat must be stored under ready to eat food.
16. Food in coolers must be 41 degrees F or less even during peak use. Freezers must be 0 degrees F or less.
17. Hand sink hot water must be 100 degrees F or warmer. Hand sink must remain unblocked at all times the establishment is open.
18. Water in wash compartment section in three (3) compartment sink must be 110 degrees F or warmer.
19. Do not prop doors open for deliveries or venting unless screens or air curtains are installed.
20. Provide area to store employee personal items (purse, coat, etc.) separate from establishment items.
21. Establishment must have a health policy and vomit/fecal cleanup policy.
22. This office must approve any changes to the menu.
23. A final inspection must be done by this office prior to restarting cooking operations.

Additional comments:

1. Accurate and conspicuous thermometers must be provided in all refrigerator/freezer and hot holding units and provide a thin mass thermometer for taking food temps.
2. Soap, paper towels in a dispenser and a waste receptacle must be provided at each hand sink.
3. Sanitizer and test strips must be provided for ware washing. Sanitizer must be prepared each day prior to prepping or handling food or drinks. Sanitizer must be checked with test strips prior to using.
4. Provide written or email response of compliance to this office.
5. Additional requirements may be requested prior to establishment opening.

If you have any questions concerning this project please contact me at (307) 633-4090.



James Jones, EHS I
Division of Environmental Health
Cheyenne Laramie County Public Department



APPLICATION FOR FOOD LICENSE

FOOD LICENSE: \$200.00 Initial Fee; \$100.00 Annual Renewal Fee.
(Licenses shall expire one year after date of issuance)

Make Checks Payable to:
WYOMING DEPARTMENT OF AGRICULTURE
CONSUMER HEALTH SERVICES SECTION
2219 CAREY AVE.
CHEYENNE, WY 82002
(307) 777-7211
State Relay Service at 7-1-1 or 1 800 877-9965

Instructions: A plan review must be submitted before this application can be considered, unless this is a change of ownership. Submit this application to your inspector of the WY Department of Agriculture or local County Health Dept. Complete all sections. If a section is not applicable enter "N/A". If additional space is needed for any item, attach additional sheet.

This application shall serve as receipt of payment.

EQUAL OPPORTUNITY IN EMPLOYMENT AND SERVICES
